

Employer's Liability

(or relationships
akin to
employment)

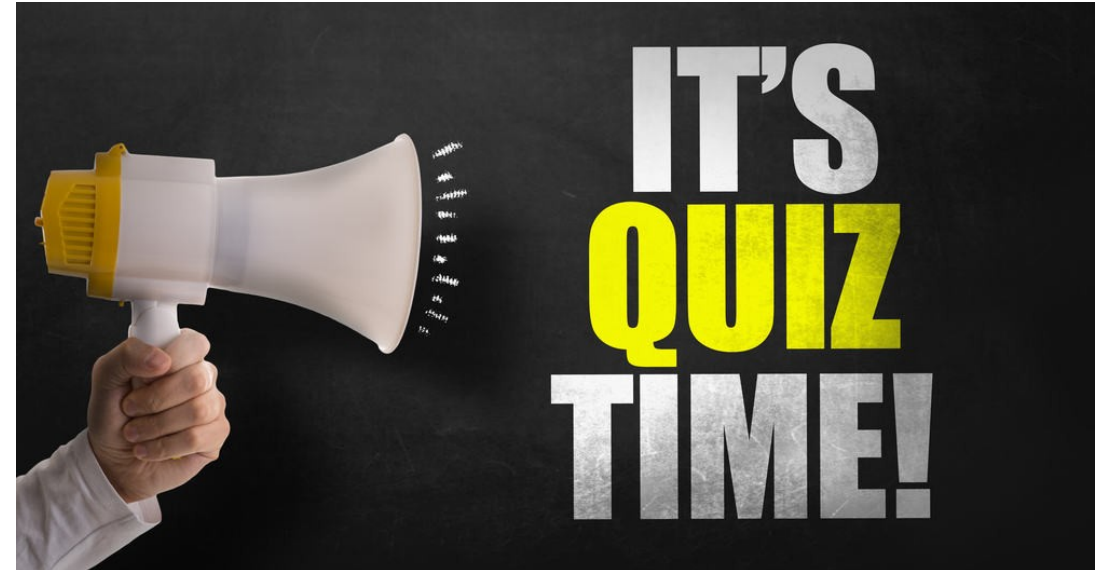
Non-Delegable Duties
and Vicarious Liability

Part 4/4

Week 18

Dr Sarah Gilmartin

s.gilmartin@lancaster.ac.uk



Problem Questions

Top Tips

Non-Delegable Duty: You must always identify the non-delegable duty or the tort

Vicarious Liability: You must always identify the tort or there's nothing for the Defendant to be vicariously liable for

N.B.

- ❖ You can usually keep any analysis of the elements of any tortious actions brief, because a question on VL/NDD is really a question about these and will take up most of your analysis.
- ❖ Don't forget IPAC (Issue, Principle, Application, Conclusion)

Problem Question 1 - Answer

X, the driver of the Defendant's (D) petrol tanker lit a cigarette with a match and threw the match on the floor where petrol from the tanker was being transferred to petrol pumps owned by the Claimant (C). As a result of X's negligence there was an explosion causing damage to C's property.



Is D liable?

- X's negligence already identified
- Is D in breach of a non-delegable duty of care?
 - Provision of competent staff?
- Is D vicariously liable for X?
 - In the course of X's employment?
 - Close connection?

Century Insurance Co Ltd v Northern Ireland Road Transport Board [1942] AC 509, 519

'The duty of the workman to his employer is so to conduct himself in doing his work as not negligently to cause damage either to the employer himself or his property or to third persons or their property, and thus to impose the same liability on the employer as if he had been doing the work himself and committed the negligent act.'

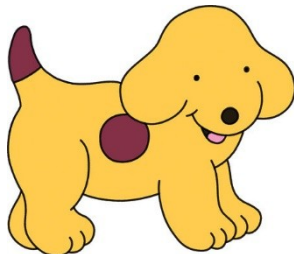
D held vicariously liable.

Problem Question 2 - spot the difference - Answer

Scenario 1

Sheila and Anton work for Bicycle Plus Limited (BPL). They had spent the preceding day and evening in lengthy meetings at a client's offices and stayed overnight in a hotel. Sheila was driving them both home in her own car the next morning so they could go into their usual place of work at BPL headquarters the following day. They were paid for their travelling time like a normal work day. They were in Sheila's car which was involved in an accident for which she was admittedly negligent. Anton was injured.

Is BPL liable?



Scenario 2

Sheila and Anton work for Bicycle Plus Limited. Sheila always picks Anton up on her way to work as she passes the end of his street. They were in Sheila's car which was involved in an accident for which she was admittedly negligent. Anton was injured.

Is BPL liable?

Smith v Stages [1989] AC 928, 956

'The paramount rule is that an employee travelling on the highway will be acting in the course of his employment if, and only if, he is at the material time going about his employer's business. One must not confuse the duty to turn up for one's work with the concept of already being "on duty" while travelling to it.'

Problem Question 3 – spot the difference - Answer

Scenario 1

Nina works for Bluepool Horse Taxi Services (BHTS) driving a horse and cart used often by tourists in the town of Bluepool. She is told she is not to leave the horse and cart unattended at any time and when going for lunch should return to BHTS' warehouse. On leaving her horse and cart unattended to grab a bite to eat at a local restaurant, the horses spooked due to a car backfire, broke their tether, and charged into the road causing several cars to collide and some pedestrians to be injured.

Is BHTS liable?

Whatman v Pearson (1867) LR 3 CP 422 – liable

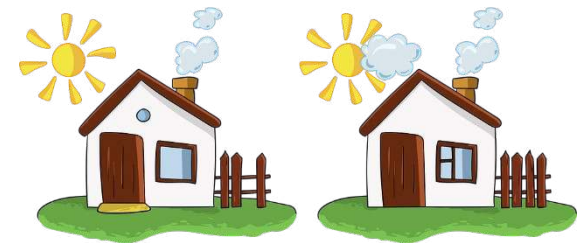
Storey v Ashton (1868) LR 4 QB 476 – not liable

Applying *Joel v Morison (1834) 172 ER 1338* – 'If he was going out of his way, against his master's implied commands, when driving on his master's business, he will make his master liable; but if he was going on a frolic of his own, without being at all on his master's business, the master will not be liable.'

Scenario 2

Nina works for Bluepool Horse Taxi Services (BHTS) driving a horse and cart for their new novel delivery service in the town of Bluepool. On the way back to BHTS' warehouse following completion of a delivery, another member of staff with her, Marissa, persuaded Nina to take her to her mum's house on the other side of town to show her the horses. On the way to Marissa's mum's house, and as a result of Nina's negligence, they were involved in an accident with a pedestrian who was injured.

Is BHTS liable?



Problem Question 4 – Incident 1

Gordon owns a factory. He has been notified of three incidents.

Advise Gordon on his prospective liability.

Incident 1: Sheryl works full time for Gordon as a forklift truck driver in the delivery bay of the factory.

A stack of heavy boxes being carried on Sheryl's forklift truck fell off and injured Marvin. Sheryl admits that she had been careless in the way she was manoeuvring the forklift truck at the time.

Problem Question 4 - Incident 1

- ANSWER

Parties:

1. Claimant (Marvin)
2. Defendant (Gordon)
3. Tortfeasor (Sheryl)

Tortious Liability

- Tort – negligence
- Duty of care owed by S to M?
- S admits breach
- Did that breach cause M's injury?
- Foreseeable?
- Defence?
- S liable?
- If yes, is G vicariously liable?



Vicarious Liability:

- S is a full-time employee of G
- Close connection between employment and tort?
- Furtherance of business?
- Fair and just to hold G liable?

Case Law:

- *Lister*
- *Mohamud*

Problem Question 4 – Incident 2

Gordon owns a factory. He has been notified of three incidents.

Advise Gordon on his prospective liability.

Incident 2: Kim, a student studying Business Management at Larchborough University, is doing a two-week placement at Gordon's factory to gain experience of management methods in a modern factory. Kim receives no wage, but she is granted access to the works canteen and the staff common room. Kim's placement involves her supervising the workers engaged in packaging.

Kim got into a heated argument with Jeffrey, a machine technician, who had been called in to repair one of the packaging machines. The argument boiled over and Kim punched Jeffrey breaking his nose.

Problem Question 4 - Incident 2

- Answer

Parties:

1. Claimant (Jeffrey)
2. Defendant (Gordon)
3. Tortfeasor (Kim)

Tortious Liability

- Battery? Intent and direct application of force
- K intended to apply force
- K applied direct force
- Did that application of force cause J's injury?
- Foreseeable?
- Defence?
- K liable?
- If yes, is G vicariously liable?

Vicarious Liability

- Unpaid student
- Employment or akin to employment?
- Independent contractor?
- Intentional criminal acts:
 - Acting in course of employment or furthering G's purpose?
 - Personal vendetta?



Case Law:

- *Catholic Child Welfare*
- *MXX*
- *Armes*
- *Cox*
- *Barclays*
- *Mohamud*
- *Mattis v Pollock (t/a Flamingos Nightclub)* [2003] EWCA Civ 887
- *WM Morrison Supermarkets* [2020]
- *Barry*

Problem Question 4 – Incident 3

Gordon owns a factory. He has been notified of three incidents.

Advise Gordon on his prospective liability.

Incident 3: Archie, usually employed at a local gym, called *Healthies*, comes into the factory every day to lead a lunch-time fitness session for the production-line employees. Gordon thinks this helps to break up the very tedious work that they do. Archie receives all of his wages from Fit-R-We but Gordon pays *Healthies* for the hour he spends at the factory each day.

Archie failed to check the safety of the weights he brought for the employees to use. As a consequence, Liz, a member of the production-line staff, suffered a broken toe when one of the dumbbells came apart and a 5kg weight fell onto her foot.

Problem Question 4 - Incident 3

- Answer

Parties:

1. Claimant (Liz)
2. Defendant (Gordon and/or Healthies and/or Fit-R-We)
3. Tortfeasor (Archie)

Tortious Liability

- Duty of care owed by A to L?
- Breach?
- Did that breach cause L's injury?
- Foreseeable?
- Defence?
- A liable?
- If yes, is G and/or H liable?

Non-Delegable Duty

- Safe Systems
- Vulnerable?

Vicarious Liability

- Employment?
- Akin to employment?
- Independent contractor?
- Dual VL?
 - Control
 - Integration



Case Law:

- *Woodland*
- *Via Systems*
- *Mersey Docks*
- *Barclays*

Employer's Liability

(or relationships
akin to
employment)

End of Lecture

Non-Delegable Duties and
Vicarious Liability

Part 4/4

Week 18

END OF LECTURE

Dr Sarah Gilmartin

s.gilmartin@lancaster.ac.uk

